

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                     |                                                    |                           |                                                        |                                               |                                          |
|-------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|------------------------------------------|
| Investigator:<br>Thomas Juliano                                                                                                     | Team:<br>Squad #06                                 | CCRB Case #:<br>202200291 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input checked="" type="checkbox"/> U.S. |
|                                                                                                                                     |                                                    |                           | <input checked="" type="checkbox"/> Abuse              | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury          |
| Incident Date(s)<br>Saturday, 12/18/2021 1:23 AM, Friday,<br>12/31/2021 10:59 AM, Wednesday,<br>06/08/2022 11:44 AM, NA, __/__/____ | Location of Incident:<br>§ 87(2)(b) Over the phone | 18 Mo. SOL<br>6/30/2023   | Precinct:<br>75                                        |                                               |                                          |
| Date/Time CV Reported<br>Fri, 01/14/2022 12:27 PM                                                                                   | CV Reported At:<br>CCRB                            | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 01/14/2022 12:27 PM |                                               |                                          |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. PO Danny Cama   | 08924  | 939964 | 075 PCT |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. PO Michael Citroen     | 11506     | 969016 | 075 PCT  |
| 2. PO Zachary Chardavoyne | 11355     | 951605 | 075 PCT  |
| 3. PO Joseph Sousa        | 04554     | 959265 | 075 PCT  |
| 4. PO Brett Goldberg      | 14917     | 955951 | 075 PCT  |
| 5. PO Ryan Grabowski      | 18598     | 959427 | 075 PCT  |
| 6. PO Kelly Urbonas       | 06397     | 968856 | 075 PCT  |

| Officer(s)            | Allegation                                                                                                                                            | Inv. Div. Recommendation |
|-----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| A . PO Danny Cama     | Abuse: On December 18, 2021, at § 87(2)(b) in Brooklyn, Police Officer Danny Cama threatened to arrest § 87(2)(b)                                     | A . Exonerated           |
| B . PO Danny Cama     | Abuse: On December 18, 2021, at § 87(2)(b) in Brooklyn, Police Officer Danny Cama threatened to arrest § 87(2)(b)                                     | B . Exonerated           |
| C . PO Danny Cama     | Discourtesy: On December 31, 2021, over the phone, Police Officer Danny Cama spoke discourteously to § 87(2)(b)                                       | C . Substantiated        |
| D . PO Danny Cama     | Off. Language: On December 31, 2021, over the phone, Police Officer Danny Cama made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)         | D . Substantiated        |
| E . PO Danny Cama     | Abuse: On an unknown date, over the phone, Police Officer Danny Cama propositioned § 87(2)(b)                                                         | E . Substantiated        |
| F . PO Danny Cama     | Untruthful Stmt.: On June 8, 2022, at 100 Church Street in Manhattan, Police Officer Danny Cama provided a misleading official statement to the CCRB. | F . Substantiated        |
| § 87(2)(g), § 87(4-b) | § 87(2)(b)                                                                                                                                            | § 87(2)(b)               |

### Case Summary

On January 14, 2022, § 87(2)(b) filed this complaint with the CCRB on behalf of himself and his child's mother, § 87(2)(b) over the phone.

On December 18, 2021, § 87(2)(b) and § 87(2)(b) got into a domestic dispute at their home, located at § 87(2)(b) in Brooklyn. PO Danny Cama and PO Michael Citroen of the 75<sup>th</sup> Precinct responded to the location. PO Cama told § 87(2)(b) and § 87(2)(b) that they could both be arrested (**Allegations A and B – Abuse of Authority: exonerated**). On December 31, 2021, PO Cama texted § 87(2)(b) to follow up with the incident and called her “sweetie” (**Allegation C – Discourtesy: substantiated**) (**Allegation D – Offensive Language: substantiated**). On an unknown date, PO Cama also texted § 87(2)(b) and asked her out on a date (**Allegation E – Abuse of Authority: substantiated**).

On June 8, 2022, during his CCRB interview, PO Cama provided a misleading statement (**Allegation F – Untruthful Statement: substantiated**).

§ 87(2)(g), § 87(4-b)

No arrests or summonses resulted from this incident.

Nine BWC videos of this incident were obtained and can be found in IAs #51-59. Summaries of the footage can be found in IAs #90-98.

### Findings and Recommendations

**Allegation A – Abuse of Authority: On December 18, 2021, at § 87(2)(b) in Brooklyn, Police Officer Danny Cama threatened to arrest § 87(2)(b)**

**Allegation B – Abuse of Authority: On December 18, 2021, at § 87(2)(b) in Brooklyn, Police Officer Danny Cama threatened to arrest § 87(2)(b)**

It is undisputed that On December 17, 2021, § 87(2)(b) got into an argument with § 87(2)(b) and her mother, and that § 87(2)(b) struck § 87(2)(b) with a bat, causing him to sustain a laceration. It is further undisputed that officers were called to the location due to the domestic incident.

PO Cama testified that upon arriving to the location he interviewed both § 87(2)(b) and § 87(2)(b). § 87(2)(b) alleged that § 87(2)(b) attacked him for no reason, and § 87(2)(b) alleged that § 87(2)(b) attempted to attack her mother, and that she hit § 87(2)(b) to defend her. PO Cama explained to § 87(2)(b) and to § 87(2)(b) that because they made allegations against each other, that they both could be arrested. However, PO Cama did not arrest either party (**Board Review 01**).

NYPD Patrol Guide, Procedure 208-36 states that if there are cross-complaints and officers cannot determine who the primary physical aggressor is, that both parties are to be arrested until the primary physical aggressor can be determined (**Board Review 02**).

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as exonerated.

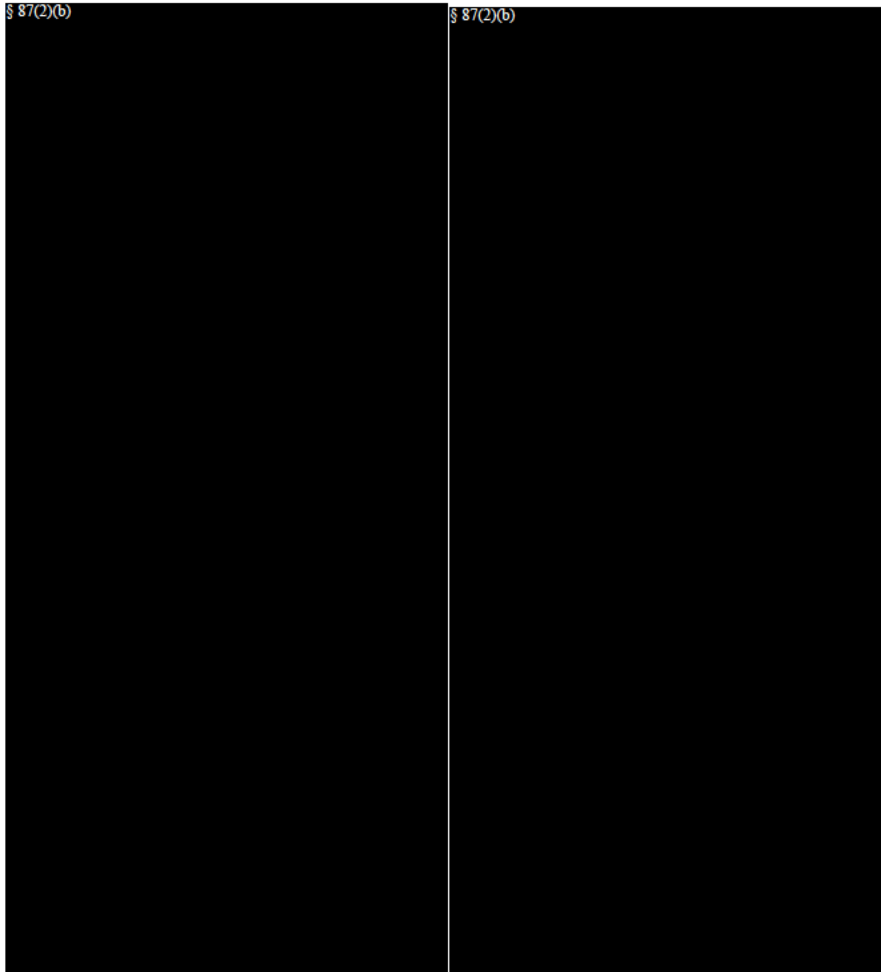
**Allegation B – Discourtesy: On December 31, 2021, over the phone, Police Officer Danny Cama spoke discourteously to § 87(2)(b)**

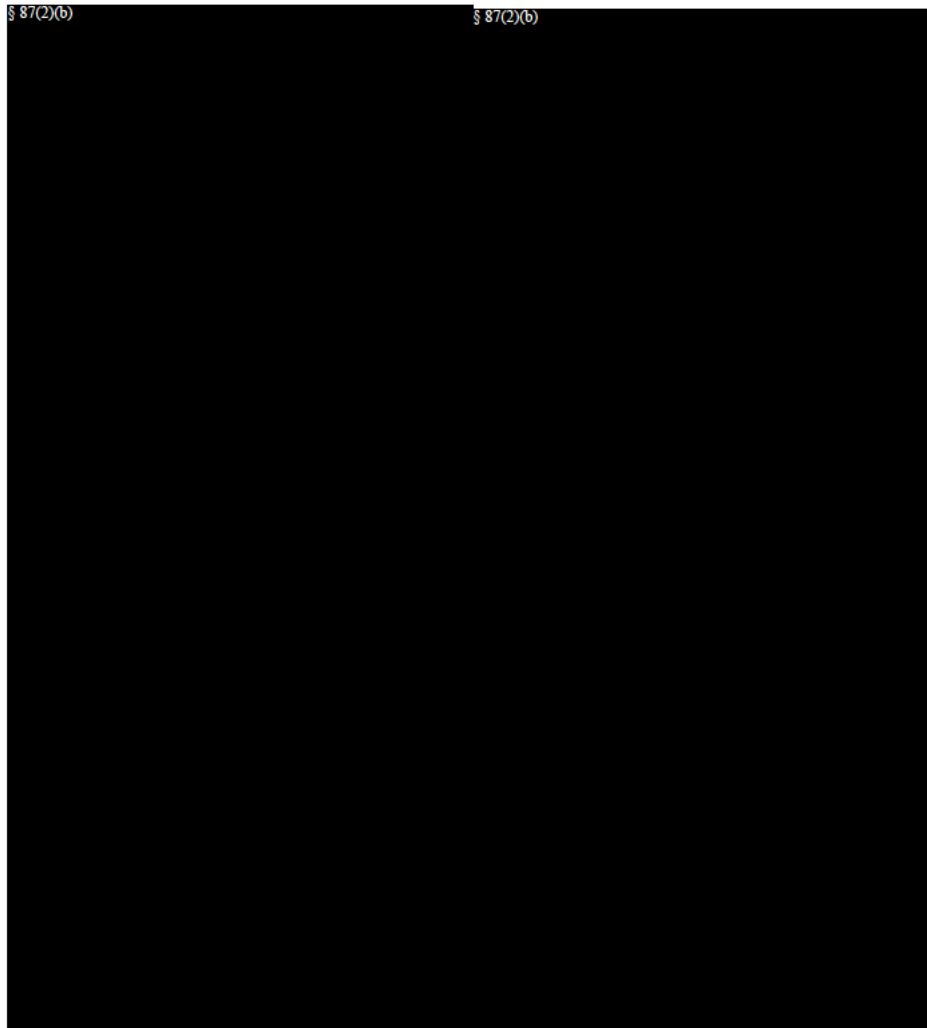
**Allegation C – Offensive Language: On December 31, 2021, over the phone, Police Officer Danny Cama made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)**

**Allegation D – Abuse of Authority: On an unknown date, over the phone, Police Officer Danny Cama propositioned § 87(2)(b)**

§ 87(2)(b) testified that during the incident, officers took a Domestic Incident Report (DIR) which recorded pedigree information about herself, including her phone number. Following the incident, § 87(2)(b) received text messages from PO Cama. § 87(2)(b) did not know how PO Cama obtained her phone number and believed that he took it from the DIR. PO Cama initially asked if her child was okay and how § 87(2)(b) was doing, then he started asking friendly and personal questions. At one point, PO Cama said that he wanted to take her out. It had been less than 24 hours since the incident. She told PO Cama that the proposition was very disrespectful. They continued texting. He asked if she had time to herself and stated that she needed to go out and relax. He asked if she ever had help with her child and informed her that he was married. § 87(2)(b) ignored him several times before she eventually stopped texting him, however, PO Cama kept texting her. She told PO Cama that she did not date married men, but PO Cama disregarded this and kept texting her. He finally stopped texting her on January 8, 2022 (**Board Review 03**).

§ 87(2)(b) provided 38 pages of screenshots of text messages between PO Cama and § 87(2)(b) which he stated § 87(2)(b) provided to him (**Board Review 04**). The screen shots are out of order, and the dates of some messages are unknown. The text messages depict the following conversations relevant to FADO allegations:





PO Cama testified that § 87(2)(b) provided him with her phone number for the DIR, but after the report was prepared he also separately asked § 87(2)(b) for her phone number and asked if he could check up on her, and she said yes. § 87(2)(b) gave her phone number a second time to PO Cama. PO Cama did not obtain § 87(2)(b) number from the DIR. PO Cama texted § 87(2)(b) from his personal phone to check up on her. PO Cama and § 87(2)(b) continued to speak through text and over the phone. PO Cama explained resources available to § 87(2)(b) including telling her that she could install alarms in her house, that there were family shelters if she had nowhere to go, that she could obtain an order of protection and file for custody. At one point, PO Cama asked § 87(2)(b) if they could meet up for a drink, and § 87(2)(b) replied sum and substance “not right now.” He asked § 87(2)(b) to go out for a drink because § 87(2)(b) had expressed to him that besides her mom, she did not have anywhere to go – so PO Cama wanted to meet with her and make sure that she was okay. PO Cama did not have any romantic intentions with the proposal. PO Cama and § 87(2)(b) continued to speak for approximately a week in which PO Cama checked in to see how she was doing. They did not meet up at any point. None of the conversation was motivated by a romantic

interest. PO Cama possibly called § 87(2)(b) “sweetie,” but did not have a specific recollection of doing so.

PO Cama was shown the copies of text messages above and he confirmed that he sent the text messages to § 87(2)(b) from his personal phone. PO Cama was shown the texts on page 11. The text messages refreshed PO Cama’s recollection about calling § 87(2)(b) sweetie. He stated that it is a word that he calls women and that he uses it similar to “dear,” and, “ma’am.” PO Cama does not use the word for men.

PO Cama was shown the texts on Page 29. PO Cama confirmed that he sent the text messages including, “I know everything is crazy right now. But after everything settles I would love to take you out and get to know you, if you’re interested of course.” PO Cama maintained that the proposal was not motivated by a romantic interest and that he was using it as a follow up to check on her. PO Cama has never checked in on a male throughout the course of his career.

PO Cama was shown the texts on Page 32. PO Cama confirmed that he sent the messages, including, “Would you ever mess around with a married man?” He also confirmed that he asked, “Been cheated on or been the cheater?” PO Cama stated that he was simply trying to get to know § 87(2)(b). The message did not have a work-related purpose. PO Cama is married, but he was not asking § 87(2)(b) if she would get involved with him despite him being married and stated that it was a general question.

PO Cama was shown the texts on Page 36. PO Cama confirmed that he sent the messages, including, “Yes I am, but my relationship is complicated. PO Cama stated that he was just trying to learn about who § 87(2)(b) was and inquiring about past relationships and her life. PO Cama’s motivation was not romantic and he was just trying to learn more about what type of person § 87(2)(b) was. PO Cama was not implying that it would be okay if he cheated on his wife (**Board Review 01**).

NYPD Patrol Guide, Procedure 203-09 states that officers must interact with members of the public in a professional manner (**Board Review 05**). NYPD Patrol Guide, Procedure 203-10(1) states that officers are prohibited from using discourteous or disrespectful remarks regarding another person’s ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability (**Board Review 06**).

NYPD Patrol Guide, Procedure 203-28 states that officers are prohibited from knowingly engaging in any type of social media contact (e.g., “friending,” “following,” etc.) with a suspect, witness, or crime victim if that officer was either involved in the incident, or the officer became acquainted with that victim or witness during or because of the incident and the matter is under investigation or pending criminal court. Social media is defined as a category of internet-based resources that integrate user-generated content and user participation. This includes, but is not limited to, social networking sites, photo and video sharing sites, wikis, blogs, and websites such as Facebook, Instagram, Flickr, YouTube, LinkedIn, Snapchat, and Twitter (**Board Review 07**).

§ 87(2)(g)  
§ 87(2)(g) it is undisputed that PO Cama contacted § 87(2)(b) after the incident, called her “sweetie,” asked her on a date, and discussed infidelity. § 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)



it is recommended that **Allegations C, D, and E** be closed as **substantiated**.

**Allegation F – Untruthful Statements: On June 8, 2022, at 100 Church Street in Manhattan, Police Officer Danny Cama provided a misleading official statement to the CCRB.**

The investigation concluded that PO Cama provided a misleading official statement to the CCRB during his interview.

During his interview, PO Cama testified that none of his conversation with § 87(2)(b) was motivated by a romantic interest, and that he simply wished to check in on § 87(2)(b) make sure that she was okay, and get to know her as a person (**Board Review 01**).

PO Cama's CCRB statement contains the following:

21:11: Inv. Juliano – “Was that the only message that you sent her?”

21:12: PO Cama – “Uh, we had conversations after that. Uh, some of the conversations were via text, some were via phone. Basically, I was reiterating to her that, uh, you know, someone was going to follow up with you, you know, there's programs that you can do, there's the DV alarms that they can install on your house, there's family shelters if you have nowhere to go. Um, you know, you can go to family court, get an order of protection, file for custody, visitation, all that type of stuff.”

21:48: Inv. Juliano – “okay, any other conversation?”

21:53: PO Cama – “um, I believe at one point in the conversation I said, in the future, if possibly we could, uh, meet up for a drink.”

22:05: Inv. Juliano – “Okay, can you help me understand your thoughts on that?”

22:09: PO Cama – “Um, I was kind of just, you know, she had explained to us that she really didn't, besides her mom, didn't really have anywhere to go. Um, it was more just, kind of just to, you know, make sure she was okay in the long run kind of. There was no romantic or any type of intentions like that.”

31:55: Inv. Juliano – “Can you help me understand your thoughts behind these series of text messages?”

32:00: PO Cama – “What do you mean by that?”

32:02: Inv. Juliano – “So, um, you start out by asking her, uh, if she's ever been cheated on, or has been the cheater in a situation. She asked you if you're married, and then you said, but my relationship is complicated. Um, can you just help me understand your thoughts behind this series of messages and what you were intending on?”

32:32: PO Cama – “It's just part of getting to know, like I said, who she is. Past relationships, past, you know, life, whatever.”

32:32: - Inv. Juliano, “Um, so here we see that you're asking about infidelity, um, and then you explain to her that your relationship is complicated. Uh, just, again. Was your motivation behind these messages at all romantic?”

32:54: PO Cama – “No, like I said I was just trying to get to know the type of person that she was.”

The text messages that PO Cama sent (See Allegations C-E) show that PO Cama not only asked § 87(2)(b) to go out with him, but referred to her as sweetie – which he acknowledged is not a term that he uses for males. Furthermore, PO Cama revealed to § 87(2)(b) that he is married, that his relationship is complicated, and asked § 87(2)(b) “would u mess with a married man?” Lastly,

despite PO Cama's assertion that he was checking in on § 87(2)(b) to see how she was doing, PO Cama testified that he has never checked in on a male victim.

Patrol Guide Procedure 203-08 forbids officers for making false official statements. The same Patrol Guide Procedure indicates that a "misleading statement" results from "altering and/or changing a member's prior statement when a member of the service is confronted with independent evidence that the incident did not occur as initially described" (**Board Review 08**). DCT Case 2016-16097, a false statement that merits Departmental discipline must not be a "mere denial of an administrative charge of misconduct" but a statement that constructs a "false description of events" about a material matter (**Board Review 09**).

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

#### Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 10**).
- PO Cama has been a member of service for 16 years and has been a subject in 12 additional CCRB complaints 14 allegations, one of which has been substantiated. § 87(2)(g)
  - Case 202000826 involved a substantiated allegation of force – physical force. The Board recommended Command Discipline B and the NYPD imposed no disciplinary action.

#### Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On June 14, 2022, an inquiry was filed with the New York City Comptroller's Office to locate a Notice of Claim for § 87(2)(b) and § 87(2)(b). The results are pending and will be added to the case file upon receipt (**Board Review 11**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 06

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 06/15/2022  
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña 6/17/2022  
Signature Print Title & Name Date